

Tentative Ruling

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(48)

Tentative Ruling

Re: **McCormick v. Henley Pacific LLC**
Superior Court Case No. 25CECG03002

Hearing Date: September 15, 2026 (Dept. 502)

Motion: By Defendant to Compel Arbitration

Tentative Ruling:

To grant defendant Henley Pacific LLC's motion to compel arbitration. To stay this action pending the completion of arbitration.

Explanation:

Plaintiff Adam McCormick ("Plaintiff") was hired on May 31, 2023 by defendant Henley Pacific LLC ("Defendant"). (Bowditch Decl., ¶ 4.) On June 25, 2025, Plaintiff filed his Complaint alleging several employment related causes of action. Defendant now moves the court to compel arbitration of Plaintiff's claims pursuant to the Mutual Agreement to Arbitrate Claims ("agreement"). (*Id.*, ¶ 7, Ex. A.)

With a motion to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The party opposing the motion must then prove by a preponderance of evidence that a ground for denial of the motion exists (e.g., fraud, unconscionability, etc.). (*Rosenthal v. Great Western Fin'l Securities Corp.* (1996) 14 Cal.4th 394, 413-414; *Hotels Nevada v. L.A. Pacific Ctr., Inc.* (2006) 144 Cal.App.4th 754, 758; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) There is a strong public policy in favor of arbitration agreements and "doubts concerning the scope of arbitrable issues are to be resolved in favor of arbitration." (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1278 (quoting *Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 323).)

Plaintiff argues that Defendant has not met its burden to show that an agreement between the parties exists and Defendant has waived the right to compel arbitration.

Formation

The terms of the agreement provide that the agreement is governed by the Federal Arbitration Act ("FAA"), 9 U.S.C. § 1, et seq. Section 2 of the FAA provides for enforcement of arbitration provisions in any contract "evidencing a transaction involving commerce." (9 U.S.C. § 2.) To determine whether there is an enforceable arbitration agreement, courts apply state law principles related to formation, revocation, and enforcement of contracts. (*Banner Entertainment, Inc. v. Alchemy Filmworks, Inc.* (1998) 62 Cal.App.4th 348, 357.) Moving defendants are not required to submit evidence of impact on interstate commerce to establish FAA preemption. (See *Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 157; *Cronus Investments, Inc. v. Concierge Services* (2005) 35

Cal.4th 376, 387, 394.) Plaintiff does not address the FAA in opposition, as such, Plaintiff concedes its applicability.

A trial court is required to grant a motion to compel arbitration “if it determines that an agreement to arbitrate the controversy exists.” (Code Civ. Proc., § 1281.2) However, there is “no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate.” (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505) Thus, when a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1) whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

“First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’ Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion. For this step, ‘it is not necessary to follow the normal procedures of document authentication.’ If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, citations omitted.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (*Gamboa v. Northeast Community Clinic, supra*, 72 Cal.App.5th at p. 165, citations omitted.) “If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (*Id.* at pp. 165–166, citation omitted.)

Here, Defendant has met their initial burden of showing that there is an agreement to arbitrate by simply attaching to Bo Bowditch’s declaration a copy of the agreement purporting to bear Plaintiff’s signature. (Bowditch Decl., ¶ 7, Ex. A.) Plaintiff has “likewise met [his] burden on the second step by filing an opposing declaration, saying [he] did not recall the agreement...” (See *Gamboa v. Northeast Community Clinic, supra*, 72 Cal.App.5th at p. 167.) Plaintiff declared that he does not recall being provided a copy of the agreement or electronically signing the agreement. (McCormick Decl., ¶ 4.) “In the face of [the plaintiff’s] failure to recall signing the [arbitration] agreement, [the defendant] had the burden of proving by a preponderance of the evidence that the

electronic signature was authentic." (*Id.*, at pp. 167-168 citing *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846 (*Ruiz*).)

"Authentication of a writing means (a) the introduction of evidence *sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is* or (b) the establishment of such facts by any other means provided by law." (*Ibid.*, italics in original, citations omitted.) "An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." (*Ibid.*, citing Civ. Code, § 1633.9, subd. (a), italics omitted.)

"In *Ruiz*, the court denied enforcement of an arbitration agreement purportedly signed electronically by Ruiz, an employee. Ruiz declared that he 'did not recall signing any arbitration agreement,' and if he had been given such an agreement, he would not have signed it. [Citation.] The employer offered a declaration that explained how it disseminated the agreement and how employees electronically executed it, yet 'did not indicate whether or if so how [the employer] ascertained that Ruiz electronically signed, or was the person who electronically signed, ... the 2011 [arbitration] agreement.' [Citation.] Applying the Uniform Electronic Transactions Act (Civ. Code, § 1633.1 et seq.), the Fourth Appellate District held that the employer had not borne its burden of proving that the electronic signature was 'the act of' the employee. [Citation.]" (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 756-757 citing *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842-845.)

There, the employer provided the declaration of its business manager, who "was 'required to be familiar with the generation and maintenance' of employee personnel records..." and "summarily asserted that Ruiz 'electronically signed' the 2011 agreement 'on or about September 21, 2011,' and that the same agreement was presented to 'all persons who seek or seek to maintain employment' with [the employer]." (*Ruiz, supra*, 232 Cal.App.4th at p. 839.) The business manager "did not explain how she arrived at that conclusion or inferred Ruiz was the person who electronically signed the 2011 agreement." (*Id.*, at p. 843.) Despite Ruiz's full name and date appearing on the signature and date lines of the 2011 agreement, and that the business manager apparently retrieved the proffered true and correct copy of the 2011 agreement from the employer's personnel records, it was "never explained how Ruiz's printed electronic signature, or the date and time printed next to the signature, came to be placed on the 2011 agreement. More specifically, [the business manager] did not explain how she ascertained that the electronic signature on the 2011 agreement was 'the act of Ruiz'. (Civ. Code, § 1633.9, subd. (a).)" (*Id.*, at pp. 843-844.) The court further found it insufficient that the business manager "explained in her reply declaration that the 2011 agreement was part of an employee acknowledgment form that 'is' presented to all ... employees as part of a series of changes to the company's employee handbook, and each employee is required to log into the company's HR system using his or her 'unique login ID and password,' to review and sign the employee acknowledgment form." (*Ibid.*)

Defendant has presented evidence to attribute the electronic signature appearing on the agreement to Plaintiff. Bo Bowditch, the Director of HR Operations and Engagement for Defendant, explains in his declaration how employee's employment

records are signed and maintained in their information system, UKG Pro. To show that the agreement was “the act of” Plaintiff, Bowditch explains that new employees are sent a welcome email with a link to access the Onboarding Portal, where they create a unique password that is not provided to anyone else. (Bowditch Supp. Decl., ¶¶ 6-7.) Then, if the employee consents to using an electronic signature, the onboarding process proceeds, otherwise, UKG Pro aborts the process. (Bowditch Decl., ¶ 11.) Bowditch declares that Plaintiff signed the consent to use an electronic signature form electronically, and a copy of the consent is attached. (Bowditch Decl., ¶ 11, Ex. C.) UKG Pro then allows the employee to view each document, click the “Sign here” button, and type their name in the box. (Bowditch Decl., ¶¶ 13-14.) The process can be completed on a computer or tablet at the jobsite or on the employee’s personal cell phone. (Bowditch Decl., ¶ 17.) Bowditch declares that Plaintiff signed the agreement on May 31, 2023, using IP Address 172.56.120.130, and attached a table showing the times that Plaintiff received, reviewed, acknowledged, and/or signed during his employment. (Bowditch Decl., ¶¶ 18-19, Ex. D.) The table showed the employment documents, including the subject agreement, were signed on the same date and in close succession. (*Ibid.*) Bowditch declares that the aforementioned IP Address is not associated with a device owned by Defendant. (Bowditch Decl., ¶ 20.)

Plaintiff contends that Defendant failed to provide sufficient evidence to authenticate Plaintiff’s electronic signature. Plaintiff argues that the following show that the signatures cannot be authenticated: Plaintiff does not “recognize” the IP Address that was used to sign the agreement, Plaintiff does not prefer to sign with his full legal name, Plaintiff believes that his former manager, Luis Velazquez, signed the agreement without Plaintiff’s consent, and the signature does not contain a timestamp. (Opp., pp. 5-6; McCormick Decl., ¶ 5.)

Defendant has met its burden of establishing the authenticity of Plaintiff’s electronic signature. Plaintiff’s declarations that he does not recognize IP Address 172.56.120.130 or that he prefers to sign his name, “A.J. McCormick” is only made in connection with the subject agreement, and not with the other documents. Plaintiff does not dispute that he signed the other onboarding documents, all of which were executed on the same date with the same device and the same electronic signature. (Bowditch Decl., Ex. A, p. 13, Ex. C, p. 18, Ex. D, p. 52; Bowditch Supp. Decl., Ex. F, pp. 14-18.) Plaintiff’s argument that he did not use the device associated with the aforementioned IP Address or use his full name to sign the agreement is neither persuasive nor well supported.

In regard to the allegation that Luis Velazquez² signed Plaintiff’s agreement, the evidence is weak and unpersuasive. Plaintiff argues that because Luis Velazquez has the same “New Hire ID”, it shows that he forged Plaintiff’s electronic signature. (Opp., p. 6; McCormick Decl., ¶¶ 5-6; Bowditch, Ex. C, D.) In response, Bowditch declares that the user designation only reflects the role of the new employee’s manager and employer representative. The manager’s name indicates their completion of the employer’s portion of the same document. (Bowditch Supp. Decl., ¶ 18.) Bowditch further declares that Plaintiff’s electronic signatures are recorded separately and are only associated with Plaintiff’s user account. (*Id.*, ¶¶ 18-19) He then explains that a manager cannot execute an employee’s electronic signature with their account. (*Id.*, ¶¶ 23.) Notably, Plaintiff’s only

² Plaintiff incorrectly refers to Luis Enrique Velazquez as “Vasquez” and “Valezquez”.

evidence is vague and conclusory. He submits that he “found out” that Luis Velazquez signed the agreement without his consent. (McCormick Decl., ¶ 5.) The evidence does not support the allegation that Luis Velazquez signed the agreement.

Plaintiff's last contention, that the electronic signature is not authentic because it lacks a time stamp, is likewise unconvincing. Plaintiff does not address or dispute the accuracy of the table evidencing the date and time each document was received, reviewed, acknowledged, and signed. (Bowditch Decl., ¶ 18, Ex. D, p. 38) According to the table provided, each document was signed on May 31, 2023, between 4:10 p.m. and 4:51 p.m., including the agreement (*Id.*, Ex. D., pp. 24-29.) The timestamp for the signature on the agreement and the short timeframe in which all the documents were signed supports the authenticity of the electronic signature.

Accordingly, there is sufficient information about how the electronic signature was obtained and sufficient information for the basis that the electronic signature was an act of plaintiff. As such, the electronic signature has been properly authenticated. Thus, Defendant has met their burden of showing the existence of an agreement to arbitrate.

Waiver

The party opposing enforcement of a contractual agreement on the basis of waiver must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it. (*Ibid.*) In *Quach*, the California Supreme Court found that the defendant had waived their right to arbitrate where, after answering the complaint, propounded discovery requests, took plaintiff's deposition, corresponded with plaintiff's counsel about discovery disputes, did not raise the issue of arbitration with plaintiff's counsel or the court, affirmatively indicated its preference for a jury trial, left the checkbox unmarked for arbitration in the case management conference statement, posted jury fees, and filed the motion to compel arbitration 13 months after the complaint was filed. (*Id.* at pp. 586–587.)

Plaintiff argues that defendant has acted inconsistently with the right to arbitrate because it did not timely file a motion to compel arbitration and required Plaintiff's wet signature to obtain a copy of his employment records. (Opp., p. 6.)

The court does not find that the delay in moving for arbitration adequately evinces the intention to relinquish the right to compel arbitration or to abandon it. While the instant motion was filed 8 months after Defendant's answer, defendant has at all times insisted on arbitration and has not engaged in acts inconsistent with that intent. Defendant's counsel has included an intent to arbitrate Plaintiff's claims in the Answer, lodged requests with Plaintiff's counsel to proceed with arbitration, stated an intent to arbitrate in the case management statement, marked “Arbitration” on the Stipulation Regarding Alternative Dispute Resolution form, and there is no evidence that Defendant propounded discovery or has taken depositions. (Answer, pp. 1-2; Scardigli Decl., ¶ 5, Ex.

